

Part II. Foundation

No. 04

Bill of Rights

Code

Cite this instrument as No. 04, Bill of Rights.

29 September 2026

Summary

The same vote, the same information right, and the same program rules for every member, on reserve or off reserve.

Members who live away remain members. A custom residency test for the vote carries Charter risk.

Part 1. Purpose and authority

1.1 This instrument states the rights of every member. A right that depends on who a member knows is not a right under this instrument.

1.2 It is made under the same authority as the constitution. It applies on reserve and off reserve.

1.3 It adopts, as the First Nation's own rule, the equality standard in Canadian Charter of Rights and Freedoms subsection 15(1), quoted in the constitution. Charter subsection 15(2) says subsection (1) does not preclude a program whose object is the amelioration of conditions of disadvantaged individuals or groups. A published member program may set eligibility. It must not set it by friendship, family of a councillor, or place of residence, except where a statute requires residence, and that exception must be quoted in the decision.

Part 2. The rights

2.1 Every elector may vote for all five seats, whether that elector lives on reserve or off reserve. Every elector may run for chief and for the three open councillor seats. Only a person who lives off reserve may run for the off-reserve seat. A person who lives on reserve may still vote for that seat.

Indian Act subsection 77(1) limits the vote for chief, in an election under that Act, to an elector ordinarily resident on the reserve. In *Corbiere v. Canada (Minister of Indian and Northern Affairs)*, [1999] 2 S.C.R. 203, the Supreme Court of Canada held that this residency limit infringed Charter section 15. The case is about subsection 77(1). It does not by itself rewrite a custom code. A custom code that copies the residency limit carries the same Charter risk. This instrument does not copy it. If section 74 or the First Nations Elections Act applies, the statute controls, and this section cannot override it.

2.2 Every member has the right to ask for a record under the right-to-information instrument, and to receive a written yes or no within the days stated there.

2.3 Every member has the right to see the budget, the quarterly statement, the audited consolidated financial statements, and the Schedule of Remuneration and Expenses, on the days stated in the band money instrument.

2.4 Every member has the right to one written housing decision and one written education decision, under those instruments, and to one appeal.

2.5 Every member has the right to report a breach to the appeal body without going through the chief, and the right not to be punished for a report made in good faith. The whistleblower instrument sets the days and the consequences.

2.6 A member may speak at a general meeting in an Indigenous language used by members. The English text of a law or resolution is the text that is filed. A translation must be posted within 30 days of a written request by 10 members. If it is late, the records officer must post the reason on the due date.

2.7 A member must not be refused a program, a job interview that was publicly posted, or a place on a list because the member complained, voted against a councillor, or lives off reserve. A refusal that cites one of those reasons is void. The appeal body must order the application reheard by people who did not make the refusal, within 21 days of a complaint.

Part 3. Limits

3.1 These rights do not include a right to another member's personal health record, a right to a house when none is vacant, or a right to a payment that is not in an adopted budget.

3.2 A limit on a right in this instrument must be written in the instrument that creates it, must name the section, and must say how many days apply. A verbal limit is void.

Part 4. How a member uses a right

4.1 A member enforces a right by a written complaint to the appeal body within 60 days of learning of the breach, and not later than one year after the breach. The appeals instrument sets the rest of the process.

4.2 The appeal body must decide in writing within 30 days of a complete complaint. If it does not, the member may post the complaint, and council honoraria stop on day 31 until the decision is posted.

4.3 Nothing in this instrument removes a right to go to court, including under Charter section 24. A public statement that names a person and asserts a crime or dishonesty can be defamation. A complaint to the appeal body should state what happened, on what date, and which section is in issue. The public log publishes the outcome, not an unverified accusation.

Part 5. Amendment

5.1 Council must not amend this bill of rights by resolution. A resolution that tries is void on the day it is signed. The appeal body must post that fact within 14 days.

5.2 The electoral officer posts the full text at least 45 days before the vote. A vote on shorter notice is void. The officer posts the count within 3 days.

5.3 The change passes only if a majority of all electors vote yes. A majority of the ballots is not enough. Indian Act subsection 2(3)(a) uses that count for a power of the band. If the count is not met, the text does not change.

5.4 The text comes into force the day after the electors adopt it under this Part. It does not repeal a law already in force unless the electors also meet that law's own replacement rule.

5.5 The appeal body reviews the text every 4 years from that day and posts a written report within 60 days. The report does not change the text.